



CHAPTER xii.

An Act to provide for the continuation of certain persons in office as elected members of the River Wear Commissioners and the retirement from office of those persons and the election of new Commissioners in their stead to make temporary provisions as to the election and term of office of co-opted members and of a chairman and a vice-chairman of the said Commissioners and for other purposes.

[18th July 1947.]

WHEREAS the River Wear Commissioners (hereinafter referred to as "the Commissioners") were originally incorporated by the Wear Navigation and Sunderland Dock Act 1859:

22 & 23 Vict.
c. lvii.

And whereas by the Wear Navigation and Sunderland Dock (Consolidation and Amendment) Act 1922 (hereinafter referred to as "the Act of 1922") the former Acts of the Commissioners were with one exception consolidated and amended and the Commissioners were continued incorporated as by that Act provided:

12 & 13
Geo. 5.
c. lxxxiv.

And whereas by virtue of the Act of 1922 and subsequent Acts the Commissioners are the authority for conserving and improving the river Wear and the port of Sunderland in the county of Durham and under and by virtue of those Acts are the owners of and carry on a statutory undertaking comprising certain docks quays wharves railways works lands and other property:

1 & 2 Geo. 6.
c. lxxxiv.

And whereas the constitution of the Commissioners was altered by the Wear Navigation and Sunderland Dock Act 1938 (hereinafter referred to as "the Act of 1938") and the whole number of the Commissioners under the Act of 1922 as amended by the Act of 1938 comprises thirty-seven members of whom eighteen are elected members fifteen are appointed members and four are co-opted members:

And whereas by the Act of 1922 as amended as aforesaid it is provided that on the third Wednesday in January of every third year subsequent to the year one thousand nine hundred and twenty-six all the Commissioners (other than the co-opted members) shall retire from office and new Commissioners shall be elected or appointed in their stead in accordance with the provisions of the Act of 1922 and the Act of 1938:

And whereas by the Act of 1922 it is further provided that the co-opted members shall retire from office immediately before the first ordinary meeting of the Commissioners held after each such Wednesday as aforesaid and under the provisions of the Act of 1922 and the Act of 1938 an election of co-opted members is required to be held at the first ordinary meeting of the Commissioners held after each triennial election of Commissioners:

And whereas by the River Wear Commissioners (Extension of Term of Office) Order 1940 as amended by the River Wear Commissioners (Extension of Term of Office) Order 1944 the term of office of the elected members of the Commissioners holding office at the date of the said Order of 1940 was extended to the third Wednesday in the month of January in the year one thousand nine hundred and forty-five and it was provided that the triennial election of elected members under the Act of 1922 as amended by the Act of 1938 should not be held until such last-mentioned year and by the said Order of 1944 certain amendments were made in the Act of 1922 and the Act of 1938 consequential on the provisions of the said Order of 1940 as amended by the said Order of 1944:

And whereas an election of elected members of the Commissioners was duly held on the third Wednesday in the month of January one thousand nine hundred and forty-five and the persons so elected were due to retire from office on the fifteenth day of January one thousand nine hundred and forty-seven but no election of elected members was held on that day:

And whereas the several persons holding office in the said month of January one thousand nine hundred and forty-seven as co-opted members of the Commissioners have ceased

to hold that office but it has not been possible to comply with the provisions of the Act of 1922 and the Act of 1938 relating to the election of new co-opted members to take their place:

And whereas in consequence there are no persons holding office as elected members or co-opted members of the Commissioners:

And whereas it is expedient that provision should be made for the continuance in office for the period mentioned in this Act of certain persons as elected members of the Commissioners:

And whereas it is expedient that the provisions contained in this Act as to the election of elected members of the Commissioners to take the place of such last-mentioned persons and as to the election of co-opted members of the Commissioners and as to the term of office of such elected members and co-opted members should be enacted:

And whereas it is expedient that the provisions contained in this Act as to the election and term of office of a chairman and of a vice-chairman of the Commissioners and as to the appointment of a committee of survey of the Commissioners should be enacted:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited for all purposes as the Wear Short title. Navigation and Sunderland Dock Act 1947.

2. The provisions of the Commissioners Clauses Act 1847 (as varied by and so far as the same are applicable for the purposes of and are not inconsistent with the Act of 1922 or the Act of 1938 or this Act and except sections 6 7 17 to 36 46 54 57 84 92 and 106 of the said Act of 1847) are hereby incorporated with this Act:

Incorporation
of Commis-
sioners
Clauses
Act 1847.
10 & 11 Vict
c. 16.

Provided that the provisions of section 16 of the Commissioners Clauses Act 1847 shall not apply in the case of the several persons who are deemed to have continued to be Commissioners or are to continue to be Commissioners under and by virtue of the section of this Act of which the marginal note is "As to elected members."

Interpreta-
tion.

3. In this Act the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction—

“ the Commissioners ” means the River Wear Commissioners and “ Commissioners ” and “ a Commissioner ” mean respectively members and a member of the Commissioners;

“ elected members ” means Commissioners elected by the various classes of persons mentioned in subsection (3) of section 16 (Reconstitution of Commissioners) of the Act of 1922;

“ the Act of 1922 ” means the Wear Navigation and Sunderland Dock (Consolidation and Amendment) Act 1922;

“ the Act of 1938 ” means the Wear Navigation and Sunderland Dock Act 1938;

“ the Acts of the Commissioners ” means the Wear Navigation and Sunderland Dock (Finance) Act 1920 the Act of 1922 the Act of 1938 and the Wear Navigation and Sunderland Dock Act 1939;

“ the effective date ” means the fifteenth day of January one thousand nine hundred and forty-seven;

“ the appointed day ” means the third Wednesday in January in the year one thousand nine hundred and forty-eight;

“ the corporation ” means the mayor aldermen and burgesses of the county borough of Sunderland acting by the council of that borough;

“ the consolidated revenue ” means all moneys arising from the rates and dues by the Act of 1922 authorised to be taken (other than the rate or duty referred to in section 79 (Rates on goods for protecting piers) of that Act) and all other sums of money receivable by the Commissioners other than moneys properly applicable to capital purposes.

As to elected
members.

4.—(1) Notwithstanding anything contained in any other enactment the several persons who were in office as elected members immediately before the effective date shall be deemed to have continued to be Commissioners on and from that date and each of such persons shall unless he has ceased or until he ceases to be qualified to hold office as a Commissioner continue to be a Commissioner until the appointed day:

Provided that if any of such persons has before the date of the passing of this Act ceased to be qualified to be a Commissioner he shall be deemed to have continued to be a Commissioner only until the date of such cesser.

(2) Any vacancy occurring before the appointed day among the several persons holding office as Commissioners by virtue of this section shall not be filled.

5.—(1) On the appointed day the several persons holding office as Commissioners by virtue of the section of this Act of which the marginal note is “As to elected members” shall retire from office and new Commissioners shall be elected in their stead in accordance with the provisions relating to the election of elected members of the Act of 1922 as amended by the Act of 1938 and this Act:

Election
of elected
members in
1948.

Provided that any person so retiring as aforesaid shall (if he retains his qualification) be eligible for re-election.

(2) For the purposes of the election of Commissioners to be elected on the appointed day in accordance with subsection (1) of this section—

(a) Subsection (1) of section 17 (Clerk to prepare lists of coalowners shipowners shipbuilders engine builders and importers and exporters entitled to vote) section 32 (Lists to be printed and published) section 34 (Subsequent appointments of revisors of lists) and section 35 (Revision of lists) of the Act of 1922 shall be read and have effect as if the words “and in the year one thousand nine hundred and forty-seven” were inserted in that subsection and those sections respectively immediately after the words “in every subsequent third year”;

(b) Subsection (1) of section 43 (Meetings for election of Commissioners) of the Act of 1922 shall be read and have effect as if the words “and of the year one thousand nine hundred and forty-eight” were inserted in that subsection immediately after the words “of every subsequent third year.”

6.—(1) At the first ordinary meeting of the Commissioners held after the expiration of fourteen days after the date of the passing of this Act the members present shall elect four co-opted members in accordance with the provisions of the Act of 1922 as amended by the Act of 1938 and applied and modified by this Act.

As to co-opted
members.

(2) The provisions of section 27 (Election of co-opted members) of the Act of 1922 and of subsections (2) (3) and (4) of section 8 (As to co-opted members) and section 11 (As to election of co-opted members) of the Act of 1938 shall

extend and apply to the election of co-opted members to be held pursuant to subsection (1) of this section as if the first ordinary meeting of the Commissioners referred to in subsection (1) of this section were the first ordinary meeting of the Commissioners held after a triennial election and subject to the following modifications (that is to say):—

(a) the two persons nominated by the Corporation on the fifteenth day of January one thousand nine hundred and forty-seven to be elected as co-opted members shall be deemed to have been duly nominated for the purpose of the election to be held pursuant to subsection (1) of this section unless before the date of the said election other persons are nominated by the Corporation in their stead;

(b) for the purposes of the application of section 11 of the Act of 1938 a person who held office as a co-opted member immediately before the first ordinary meeting of the Commissioners held after the effective date shall be deemed to be a retiring co-opted member and a reference to ten days shall be substituted in that section for the reference therein to twenty-one days.

(3) Each of the several persons elected as co-opted members pursuant to this section shall if and so long as he continues to be qualified to hold office as a Commissioner be a member of the Commissioners as from the date of such election until the date of retirement from office under the provisions of the Act of 1922.

As to election of chairman and vice-chairman.

7.—(1) (a) At the first ordinary meeting of the Commissioners held after the election of co-opted members pursuant to subsection (1) of the section of this Act of which the marginal note is “As to co-opted members” the members of the Commissioners then holding office respectively as chairman and vice-chairman of the Commissioners shall retire from those offices and at that meeting the members present shall elect one of the Commissioners as chairman of the Commissioners and another of the Commissioners as vice-chairman of the Commissioners.

(b) For the purposes of section 10 (As to election of chairman and vice-chairman) of the Act of 1938 in the application of that section to the election pursuant to this subsection of a chairman of the Commissioners and a vice-chairman of the Commissioners the member of the Commissioners who held office as chairman of the Commissioners immediately before the effective date shall be deemed to be a retiring chairman and the member of the Commissioners who

held office as vice-chairman of the Commissioners immediately before the effective date shall be deemed to be a retiring vice-chairman.

(2) The persons respectively elected as chairman and vice-chairman of the Commissioners under the provisions of subsection (1) of this section shall (subject to their respectively continuing to be Commissioners) continue in office until the first ordinary meeting of the Commissioners held after the appointed day and shall then retire from office.

(3) At the first ordinary meeting of the Commissioners referred to in subsection (2) of this section the members present shall elect one of the Commissioners as chairman of the Commissioners and the person so elected shall (subject to his continuing to be a Commissioner) be the chairman of the Commissioners until the next succeeding annual meeting of the Commissioners when he shall retire from office as chairman.

(4) At the said annual meeting of the Commissioners the members present shall elect one of the Commissioners as chairman of the Commissioners and another of the Commissioners as vice-chairman of the Commissioners. The persons respectively elected as chairman and vice-chairman of the Commissioners under the provisions of this subsection shall (subject to their respectively continuing to be Commissioners) continue in office until the first ordinary meeting of the Commissioners held after the triennial election to be held in the year one thousand nine hundred and fifty and shall then retire from office.

8. Notwithstanding anything contained in any other enactment the Commissioners may at their annual meeting next succeeding the appointed day elect choose and appoint a committee of not less than seven of the Commissioners to be the committee of survey for the purposes of Part III (Committee of survey) of the Act of 1922 and for the purposes of this section section 48 (New committee of survey to be appointed) of the Act of 1922 shall be read and have effect as if the words "and in the year one thousand nine hundred and forty-eight" were inserted in subsection (1) of that section immediately after the words "in each subsequent third year."

As to
committee
of survey.

9. For the removal of doubts it is hereby declared that all works appointments acts and things executed made or done or purporting to have been executed made or done under or in pursuance of the Acts of the Commissioners on or at any time after the effective date and before the date of the passing of this Act which would have been valid if

As to validity
of acts &c.
done before
passing of
Act.

this Act had been in force on the effective date or if a triennial election had been held on that date shall for all purposes be deemed to have been validly executed made or done.

Saving for triennial and other elections in 1950 and subsequent years.

10. Nothing in this Act or done thereunder shall in any way prejudice or affect the election of elected members of the Commissioners to be held in the month of January in the year one thousand nine hundred and fifty or the appointment of appointed members or the election of co-opted members to be appointed or held in that year and the said first-mentioned election shall for all the purposes of the Act of 1922 and the Act of 1938 be deemed to be a triennial election.

Costs of Act.

11. All costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Commissioners out of the consolidated revenue and may if they think fit be spread over a period of years.

PRINTED BY SIR NORMAN GIBB SCORGIE, C.V.O., C.B.E.
Controller of His Majesty's Stationery Office and King's Printer of Acts
of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2 ; 13a Castle Street, Edinburgh, 2 ;
39-41 King Street, Manchester, 2 ; 1 St. Andrew's Crescent Cardiff ;
Tower Lane, Bristol, 1 ; 80 Chichester Street, Belfast
OR THROUGH ANY BOOKSELLER

Price 4d. net

(70837)